

Gopi Ram v. Dakshinanchal Vidhyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 9 August 2017 · Writ-C No. 35444 of 2017 · **Writ disposed; EE to consider Clause 6.14 installment application within three weeks.**

HEADNOTE

On a writ challenging recovery of disputed electricity dues, the Allahabad High Court declined to examine the consumer's objections on merits. It directed that if the petitioner offered to deposit the amount due with the Executive Engineer, that officer may consider easy installments under Clause 6.14 of the U.P. Electricity Supply Code, 2005, and must dispose of any such application within three weeks of filing.

FACTUAL SUMMARY

Gopi Ram, a consumer of Dakshinanchal Vidhyut Vitran Nigam Ltd., filed a writ petition in the Allahabad High Court while recovery of electricity dues was being made against him. He raised several issues disputing that demand. Counsel for the petitioner and for the Electricity Department were heard. The Division Bench was not inclined to examine those disputes in the writ and confined itself to how any offer to deposit the amount due might be processed before the Executive Engineer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment-payment-clause-6.14

HOLDING

Where recovery of electricity dues is underway and the consumer offers to deposit the amount due with the Executive Engineer, that officer may consider granting easy installments as contemplated under Clause 6.14 of the U.P. Electricity Supply Code, 2005; an application moved in that regard shall be disposed of within three weeks of its filing. The Court will not, in such a writ, enter into the consumer's disputes on the dues themselves. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S OBJECTIONS DISPUTING THE ELECTRICITY DUES UNDER RECOVERY

The Court expressly declined to enter into those disputes. ¶ 1